

[3. *Gift of husband to his wife.*—Prior to the Married Women's Property Act, 1882] a husband was incapable of making a gift of chattels at law to his wife, and, therefore, if he purported to make such a gift, a Court of Equity considers it tantamount to a declaration that the husband would hold in trust for the wife for her separate use. The words

Ins. Co. 10 Mass. 476; unless a stranger is to be the trustee, and the corporate laws require it; *Lonsdale's Est.* 29 Pa. St. 407; *Kiddill v. Farnell*, 3 Sm. & Gif. 428; *Jones v. Obenchain*, 10 Grat. 259; *Gilchrist v. Stevenson*, 9 Barb. 9. It is not necessary that the beneficiary have knowledge of the settlement if he afterwards accepts and ratifies it; *Cumberland v. Codrington*, 3 Johns. Ch. 261; *Weston v. Baker*, 12 Johns. 276; *Shepherd v. M'Evers*, 4 Johns. Ch. 136; 8 Am. Dec. 561, and see cases referring to bank deposits.

*Savings-Bank Deposits.*—The decisions are somewhat in conflict, owing largely to the difficulty in applying the rules to the facts of each case; where S. deposited money in trust for M. & K., distant relatives, who were ignorant of it, S. retaining the bank-book and drawing a year's interest, it was held that a valid trust was created for M. & K.; *Martin v. Funk*, 75 N. Y. 134; 31 Am. Rep. 446; *Farrelly v. Ladd*, 10 Allen, 127; *Witzel v. Chapin*, 3 Bradf. 386; *Millspaugh v. Putnam*, 16 Abb. Pr. 380; whether a trust has been perfectly created, or whether it is an incomplete gift, is a question of fact in all these cases, and the result reached hinges largely upon the object of the settlor, the situation of the parties, and the character of the subject-matter. In *Brabrook v. Bank*, 104 Mass. 228, a father handed his infant child a check, with a strong indication of his intention to give the check to the child, afterwards locking it up to keep it for the child. The father died the same day, and it was held there was no trust, though it appears that the decision turned rather upon the particular facts of the case than upon any variation of the principles involved; *Clark v. Clark*, 108 Mass. 522, a similar case, referred to *Brabrook v. Bank*, and was decided on the strength of that without giving any reasons; and though the facts in these cases may be thought to show that the trusts were not perfectly created, still it is submitted that they are not in accord with current of recent decisions. In view of death A. delivered to B. a package containing money, a bank-book, and a memorandum stating where he wished to be buried, and how the balance of his property was to be distributed; held a valid trust; *Pierce v. Savings Bank*, 129 Mass. 425; 37 Am. Rep. 371; also where one took the book at direction of an aunt, who said, "Keep this, and if anything happens to me, bury me decently, put a headstone over me, pay my debts, and anything that is left is yours"; *Curtis v. Bank*, 77 Me. 151; 52 Am. Rep. 750; 2 Schouler, Pers. Prop. § 195; *Clough v. Clough*, 117 Mass. 85; D. deposited in bank in own name all that the law permitted, and also in names of son and grandchildren as trustee, he keeping the books and taking the dividends; evidence was admitted that D. had told them he intended the deposits for them after his death, but he wanted the interest while he lived; *Gerrish v. Inst. for Savings*, 128 Mass. 159; 35 Am. Rep. 365; *Bartlett v. Remington*, 59 N. H. 364; *Pierson v. Drexel*, 11 Abb. (N. Y.) N. Cas. 150; *Weaver v. Emigrant Bank*, 17 Abb. (N. Y.) N. Cas. 82; *Willis v. Smyth*, 91 N. Y. 297; it must appear that the fiduciary relations are fully established; *Urann v. Coates*, 109 Mass. 581; a testator transferred certain bank shares to himself as trustee for his daughter, she being ignorant